

- (b) a creditor of an industrial undertaking referred to in clause (a) may repatriate foreign currency loans approved by the Federal Government and interest thereon in accordance with the terms and conditions of the said loan :

Provided that nothing in this section shall affect the terms of the permission to make such investment granted to a foreign investor before the commencement of this Act.

7. Remittances by foreign employees.—Foreign nationals employed with the approval of the Federal Government in any industrial undertaking having foreign private investment may make remittances for the maintenance of their dependents in accordance with the rules, regulations or orders issued by the Federal Government or the State Bank of Pakistan.

8. Tax concession and avoidance of double taxation.—(1) The Federal Government may allow such concessions to industrial undertakings having foreign private investment as may be admissible under any law for the time being in force.

(2) Foreign private investment shall not be subject to other or more burdensome taxes on income than the applicable to investment made in similar circumstances by citizens of Pakistan.

(3) Foreign private investment shall be allowed all the tax concessions which may be admissible on the basis of any agreement for avoidance of double taxation which the Government of Pakistan may have entered into with the Government of the country of origin of such investment.

9. Equal treatment.—Industrial undertakings having foreign private investment shall be accorded the same treatment as is accorded to similar industrial undertakings having no such investment in the application of laws, rules and regulations relating to importation and exportation of goods.

10. Removal of difficulties.—If any difficulty arises in giving effect to any provisions of this Act, the Federal Government may make such order, not inconsistent with the provisions of this Act, as may appear to it to be necessary for the purpose of removing the difficulty :

Provided that no such power shall be exercised after the expiry of one year from the commencement of this Act.

11. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act, and such rules may, among other matters, provide for the employment of Pakistani and foreign nationals in industrial undertakings having foreign private investment.

12. Repeal. The Foreign Private Investment (Promotion and Protection) Ordinance, 1976 (XIV of 1976), is hereby repealed.

ACT No. XLIII of 1976

An Act to provide for restrictions on dowry and bridal gifts

WHEREAS it is expedient to provide for restrictions on dowry and bridal gifts and for matters connected therewith or ancillary thereto ;

It is hereby enacted as follows :—

1. Short title, extent and commencement.—(1) This Act may be called the Dowry and Bridal Gifts (Restriction) Act, 1976.

(2) It extends to the whole of Pakistan and applies to all citizens of Pakistan

(3) It shall come into force at once.

2. **Definitions.**—In this Act, unless there is anything repugnant in the subject or context,—

- (a) “bridal gift” means any property given as a gift before, at or after the marriage, either directly or indirectly, by the bridegroom or his parents to the bride in connection with the marriage but does not include *Mehr*;
- (b) “dowry” means any property given before, at or after the marriage, either directly or indirectly, to the bride by her parents in connection with the marriage but it does not include property which the bride may inherit under the laws of inheritance and succession applicable to her;
- (c) “marriage” includes betrothal, *nikah* and *rukhsati*;
- (d) “parents” includes the guardian of a party to a marriage and any person who provides dowry or bridal gifts and, in the case of a party to a marriage who has no parent, or whose marriage is solemnized in circumstances in which, or at a place at which, no parent is present, such party;
- (e) “present” means a gift of any property, not being a bridal gift or dowry, given before, at or after the marriage, either directly or indirectly, to either party to a marriage in connection with the marriage or to the relatives of the bride or bridegroom but does not include *neundra* and *salami*;
- (f) “property” means property, both moveable and immoveable, and includes any valuable security as defined in the Pakistan Penal Code (Act XLI of 1860); and
- (g) “Registrar” means a *Nikah* Registrar licensed under the Muslim Family Laws Ordinance, 1961 (VIII of 1961), and such other person as may be designated from time to time to perform the functions of the Registrar.

3. **Restriction on dowry, presents and bridal gifts.**—(1) Neither the aggregate value of the dowry and presents given to the bride by her parents nor the aggregate value of the bridal gifts or of the presents given to the bridegroom shall exceed five thousand rupees:

Explanation.—The ceiling of five thousand rupees specified in this subsection does not in any way imply that the dowry, bridal gifts and presents of a lesser amount may not be given.

(2) No dowry, bridal gifts or presents may be given before or after six months of *nikah*, and, if *rukhsati* takes place some time after *nikah*, after six months of such *rukhsati*.

4. Restriction on presents.—No person shall give to either party to the marriage any present the value of which exceeds one hundred rupees ;

Provided that the limit of one hundred shall not apply to the presents given to the bridegroom by the parents of the bride under sub-section (1) of section 3 :

Provided further that the President, the Prime Minister, Federal Minister, Chief Minister, Minister, Minister of State, Adviser, Governor, Speaker, Deputy Speaker, the Chairman or the Deputy Chairman of the Senate, Parliamentary Secretary, Member of the Senate, National Assembly or Provincial Assembly, Government servant or an official serving in any corporation, industry or establishment owned, controlled or managed by Government shall not receive any present in connection with his marriage or the marriage of his son or daughter except from his relations (khandan) :

Provided further that this restriction shall not apply to a Government servant or official serving in the scale below National Pay Scale 17 not exercising in any manner judicial, revenue or executive authority.

5. Vesting of dowry etc., in the bride.—All property given as dowry to bridal gifts and all property given to the bride as a present shall vest absolutely in the bride and her interest in property however derived shall hereafter not be restrictive, conditional or limited.

6. Expenditure on marriage.—The total expenditure on a marriage, excluding the value of dowry, bride gifts and presents, but including the expenses on *mendhi*, *barat* and *valima*, incurred by or on behalf of either party to the marriage shall not exceed two thousand and five hundred rupees.

7. Display of dowry, etc.—The parents of each party to a marriage shall, at the time of *rukhsati*, display all items of dowry, bridal gifts and presents given or received in connection with the marriage so as to be visible to the person attending the *rukhsati*.

8. Lists of dowry, etc. to be furnished to Registrar.—(1) The parents of each party to a marriage shall furnish to the Registrar lists of dowry, bridal gifts and presents given or received in connection with the marriage.

(2) The lists referred to in sub-section (1) shall be furnished,—

- (a) in the case of property given or accepted before or at the time of the marriage, at the time of the marriage ; and
- (b) in the case of property given or accepted after the marriage, within fifteen days of its being given or accepted.

(3) The lists referred to in sub-section (1) shall—

- (a) contain details of the property alongwith the value thereof ; and

- (b) be signed or thumb-marked by the persons furnishing them to the Registrar and attested by at least two witnesses.

(4) The parents of each party to a marriage shall furnish to the Registrar the details of expenditure incurred on the marriage, duly signed or thumb marked by them within one week.

(5) The Registrar shall forward the lists furnished under sub-section (1) and the details of expenditure submitted under sub-section (4) to the Deputy Commissioner within fifteen days of receipt of such list or details of expenditure.

9. Penalty and procedure.—(1) Whoever contravenes, or fails to comply with, any provision of this Act or the rules made thereunder shall be punishable with imprisonment of either description for a term which may extend to six months, or with fine which may extend to ten thousand rupees, or with both, and the dowry, bridal gifts or presents given or accepted in contravention of the provisions of this Act shall be forfeited to the Federal Government to be utilized for the marriage of poor girls in such a way as may be prescribed by rules made under this Act :

Provided that if both the parents of a party to the marriage contravene, or fail to comply with, any provision of this Act or the rules made thereunder, action under this section shall be taken only against the father :

Provided further that if the parent who contravenes, or fails to comply with, any provision of this Act or the rules made thereunder is a female, shall be punishable with fine only.

(2) Any offence punishable under this Act shall be triable only by a Family Court established under the West Pakistan Family Courts Act, 1964 (W.P. Act No. XXXV of 1964).

(3) No Family Court shall take cognizance of an offence punishable under this Act except upon a complaint in writing made by, or under the authority of, the Deputy Commissioner within nine months from the date of *nikah*, and if *rukhsati* takes place some time after *nikah*, from the date of such *rukhsati*.

(4) While trying an offence punishable under this Act, a Family Court shall follow the procedure prescribed by the Code of Criminal Procedure, 1898 (Act V of 1898), for the trial of offences by Magistrates.

10. Power to make rules.—The Federal Government may, by notification in the official Gazette, make rules for carrying out the purposes of this Act.

11. Repeal.—The West Pakistan Dowry (Prohibition on Display) Act, 1967 (West Pakistan Act No. XVI of 1967) and the North-West Frontier Province Dowry Act, 1972 (N.W.F.P. Act No. IX of 1972), are hereby repealed.